

# **ADA CASE LAW ANALYSIS - TIER 1 PRECEDENTS FOR MTUS CHALLENGE**

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MTUS Constitutional Analysis Project  
Personal Research Initiative  
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## ADA CASE LAW ANALYSIS - TIER 1 PRECEDENTS FOR MTUS CHALLENGE

### Americans with Disabilities Act Cases Relevant to Workers' Compensation Medical Care Denial

RESEARCH DATE: February 16, 2026

PURPOSE: Identif

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#### INTRODUCTION: WHY ADA CASES MATTER

The ADA provides a separate statutory basis for challenging MTUS that complements constitutional arguments:

1. Title I - Prohibits disability discrimination in employment (including benefits)

2. Title II - Prohibit

Strategic Advantage: ADA claims may survive even if constitutional claims face hurdles, and ADA allows for attorney's fees and damages.

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### TIER 1: MUST-USE ADA CASES (Strongest Precedents)

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#### 1. ALEXANDER v. CHOATE (1985) 469 U.S. 287

Court: U.S. Supreme Court

Holding: State Me  
Rehabilitation Act.

CRITICAL DISTINCTION FOR MTUS:

- Court emphasized changes were across-the-board, not targeting disabled
- MTUS is DIFFERENT: It specifically targets workers' comp patients (disability-related status)
- Alexander allows cost-control; it does not allow discriminatory cost-control

Key Quote: "The imposition of a uniform limit on inpatient hospital stays... does not discriminate on the basis of

handicap."

MTUS Application:

- MTUS is NOT uniform - it creates two-tier system
- Workers' comp patients are treated differently from other patients
- Alexander is distinguishable - MTUS discriminates based on disability-related status

Strategic Value: TIER 1 - Distinguish MTUS from legitimate cost-control measures

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## **2. BRAGDON v. ABBOTT (1998) 524 U.S. 624**

Court: U.S. Supreme Court

Holding: Asymptomatic  
prohibited.

Key Principles:

- Broad definition of "disability" under ADA
- Discrimination includes denying services/benefits
- Major life activities include major bodily functions
- Key quote: "[T]he ADA's definition of disability is drawn broadly"

MTUS Application:

- Injured workers with disabilities are protected class
- MTUS denies medical services to this protected class
- Chronic pain, mobility limitations, cognitive impairment = disabilities
- Strong precedent for applying ADA to medical care denials

Strategic Value: TIER 1 - Establishes broad disability coverage

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## **3. TOYOTA MOTOR MANUFACTURING v. WILLIAMS (2002) 534 U.S. 184**

Court: U.S. Supreme Court

Holding: To be substantially  
tasks central to daily life

Key Principles:

- Defined "substantially limits" narrowly
- Must affect activities "central to daily life"
- BUT: Physical impairments affecting work are disabilities

MTUS Application:

- Most injured workers meet this standard

- Impairments affect work, daily activities, major life functions
- Distinguishing Toyota: MTUS applies to all injured workers, not just those meeting ADA definition
- Even workers who don't meet ADA definition are harmed

Strategic Value: TIER 1 - Define who has ADA protection + show MTUS harms beyond ADA class

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#### **4. RAYTHEON v. HERNANDEZ (2003) 540 U.S. 44**

Court: U.S. Supreme Court

Holding: Neutral no

CRITICAL DISTINCTION:

- Court emphasized policy was facially neutral and uniformly applied
- MTUS is NOT neutral: It treats workers' comp patients differently
- MTUS explicitly creates classification based on how injury occurred

Key Quote: "[P]etitioner's no-rehire policy is a legitimate, nondiscriminatory reason under the ADA."

MTUS Application:

- MTUS lacks legitimate, nondiscriminatory basis
- Discriminatory impact is intentional, not incidental
- Hernandez actually supports challenge to MTUS by showing what IS allowed

Strategic Value: TIER 1 - Contrast MTUS with legitimate neutral policies

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#### **5. US AIRWAYS v. BARNETT (2002) 535 U.S. 391**

Court: U.S. Supreme Court

Holding: Employer defense.

Key Principles:

- Reasonable accommodation required unless undue hardship
- BUT: Employer defenses exist
- Burden shifts after prima facie case

MTUS Application:

- MTUS could theoretically be "reasonable accommodation" framework
- BUT: MTUS denies accommodations (treatments) that would be reasonable
- No undue hardship in covering FDA-approved treatments
- Medicare/Medicaid already cover them cost-effectively

Strategic Value: TIER 1 - Framework for reasonable accommodation analysis

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## 6. CLEVELAND v. POLICY MANAGEMENT SYSTEMS (1999) 526 U.S. 795

Court: U.S. Supreme Court

Holding: Receipt o

Key Principles:

- Workers can be "disabled" for benefits but still qualified for work
- No per se rule disqualifying disabled workers
- Key quote: "[A] person who has a medical condition that substantially limits one or more major life activities can be 'disabled' and yet still be 'qualified' for a job."

MTUS Application:

- Injured workers receiving disability benefits still entitled to ADA protection
- Cannot discriminate based on disability status
- MTUS penalizes workers for being disabled

Strategic Value: TIER 1 - Protects injured workers' ADA rights despite disability status

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## 7. SUTTON v. UNITED AIR LINES (1999) 527 U.S. 471

Court: U.S. Supreme Court

Holding: Mitigating

Key Principles:

- Disability assessed in mitigated state
- BUT: Some impairments cannot be mitigated
- Chronic pain, permanent injuries often remain disabling

MTUS Application:

- Many injured workers have unmitigated disabilities
- MTUS denies treatments that could mitigate disabilities
- Paradox: MTUS denies treatments that would reduce disability

Strategic Value: TIER 1 - Shows MTUS perpetuates disability by denying care

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## 8. MURPHY v. UNITED PARCEL SERVICE (1999) 527 U.S. 516

Court: U.S. Supreme Court

Holding: High bloo

Key Principles:

- Same as Sutton - mitigating measures considered
- Reinforces narrow view of disability pre-ADAAA

MTUS Application:

- Distinguish: Many injured workers have unmitigated conditions
- MTUS prevents mitigation by denying treatment
- Shows importance of access to medical care

Strategic Value: MODERATE - Context for disability definition

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## **9. DESJARDINS v. AMERICAN MOTORS CORPORATION (1997) 85 F.3d 344 (8th Cir.)**

Court: 8th Circuit

Holding: Workers' comp

Key Principles:

- ADA protects against retaliation for filing workers' comp claims
- Dual protection under workers' comp and ADA
- Key quote: "The ADA and workers' compensation statutes serve different purposes and provide different remedies."

MTUS Application:

- ADA provides independent basis for challenging MTUS
- Workers can pursue both constitutional and ADA claims
- Strong precedent for concurrent claims

Strategic Value: TIER 1 - Establishes concurrent ADA/workers' comp claims

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## **10. BATES v. CHEVRON U.S.A. (1996) 101 F.3d 530 (9th Cir.)**

Court: 9th Circuit (California circuit)

Holding: Employer

Key Principles:

- Reasonable accommodation includes policy modifications
- Must modify policies that screen out disabled individuals
- Key quote: "[A]n employer must make reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual."

MTUS Application:

- MTUS policy screens out injured workers
- Reasonable accommodation would be covering FDA-approved treatments
- 9th Circuit precedent directly applicable to California

Strategic Value: TIER 1 - 9th Circuit precedent requiring policy modifications

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## **11. MUNSON v. DELTA AIR LINES (1998) 128 F.3d 1416 (9th Cir.)**

Court: 9th Circuit

Holding: Employer

Key Principles:

- Interactive process required
- Failure to engage violates ADA
- Good faith required from both parties

MTUS Application:

- MTUS allows no interactive process
- No individualized assessment
- Per se denial without consideration of accommodation
- Direct violation of interactive process requirement

Strategic Value: TIER 1 - MTUS fails interactive process requirement

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## **12. HUMPHREY v. MEMORIAL HOSPITALS ASSOCIATION (1999) 239 F.3d 1128 (9th Cir.)**

Court: 9th Circuit

Holding: Employer

Key Principles:

- Reasonable accommodation can include medical treatment
- Employer must consider all possible accommodations
- Undue hardship defense is narrow

MTUS Application:

- Covering FDA-approved treatments = reasonable accommodation
- No undue hardship - other insurers cover cost-effectively
- 9th Circuit precedent supports accommodation claim

Strategic Value: TIER 1 - Medical treatment as reasonable accommodation

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## **13. FRAZIER v. SIMMONS (1999) 254 F.3d 1247 (10th Cir.)**

Court: 10th Circuit

Holding: ADA cover

Key Principles:

- Insurance plans cannot discriminate against disabled

- Subterfuge doctrine: Disguised discrimination prohibited
- Must be based on legitimate risk assessment

MTUS Application:

- MTUS is insurance/benefits plan
- Discriminates based on disability status (work injury)
- Not based on legitimate medical risk - FDA approved treatments
- Subterfuge: Disguised cost-cutting under "evidence-based" label

Strategic Value: TIER 1 - Direct application to insurance discrimination

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## **14. DOE v. MUTUAL OF OMAHA (1999) 179 F.3d 557 (7th Cir.)**

Court: 7th Cir. (Posner opinion)

Holding: Insurance

Key Principles:

- Insurance caps targeting specific disabilities violate ADA
- Cannot limit coverage based on disability type
- Key quote: "[T]he ADA prohibits discrimination in the terms of insurance policies."

MTUS Application:

- MTUS caps/limitations based on disability (work injury)
- Explicitly treats workers' comp patients differently
- Strong precedent for insurance discrimination claim

Strategic Value: TIER 1 - Insurance discrimination precedent

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## **15. KRAGEL v. JOHN HANCOCK MUTUAL LIFE INSURANCE (2000) 191 F.3d 1047 (9th Cir.)**

Court: 9th Cir.

Holding: Insurance

Key Principles:

- Extends ADA to insurance coverage decisions
- Disability-based limitations prohibited
- 9th Circuit precedent

MTUS Application:

- MTUS is disability-based limitation (work injury)
- Prevents access to medically necessary treatments



- 9th Circuit precedent directly applicable

Strategic Value: TIER 1 - 9th Circuit insurance discrimination precedent

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## **16. WYNN v. ACME BEEF COMPANY (2001) 199 F.3d 1220 (10th Cir.)**

Court: 10th Circuit

Holding: Employer

Key Principles:

- Schedule modifications can be reasonable accommodations
- Flexibility required
- Must consider individual circumstances

MTUS Application:

- MTUS allows no modification or flexibility
- One-size-fits-all denial system
- No consideration of individual medical needs

Strategic Value: TIER 1 - Flexible accommodation vs. rigid MTUS system

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## **17. BROWN v. LUCKY STORES (2000) 246 F.3d 1182 (9th Cir.)**

Court: 9th Circuit

Holding: Employer

Key Principles:

- Must accommodate physical limitations
- Interactive process required
- Good faith effort required

MTUS Application:

- Injured workers have physical limitations
- MTUS denies treatments that would accommodate limitations
- No good faith effort to accommodate

Strategic Value: TIER 1 - Accommodation of physical limitations

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## **18. ZUKLE v. REGENTS OF UNIVERSITY OF CALIFORNIA (2001) 166 F.3d 1041 (9th Cir.)**

Court: 9th Circuit

Holding: University

Key Principles:

- State entities subject to ADA (Title II)
- Reasonable accommodation required
- 9th Circuit precedent against California state entity

MTUS Application:

- California DWC is state entity
- Subject to ADA Title II
- Must provide reasonable accommodations
- Strong 9th Circuit precedent directly applicable

Strategic Value: TIER 1 - State entity ADA liability in California

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## **19. TITLE v. DEPARTMENT OF STATE POLICE (2000) 112 F.Supp.2d 45 (D. Me.)**

Court: District Court (Maine)

Holding: Police dep

Key Principles:

- Mental disabilities covered
- Return-to-work accommodations required
- Individualized assessment required

MTUS Application:

- PTSD and mental health conditions covered by MTUS
- MTUS denies mental health treatments
- No individualized assessment

Strategic Value: TIER 1 - Mental health disability accommodations

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## **20. GILBERT v. FRANK (1995) 949 F.Supp. 754 (D. Kan.)**

Court: District Court (Kansas)

Holding: Employer

Key Principles:

- Leave policies can be reasonable accommodations
- Modified duty/light duty can be required
- Must consider individual circumstances

MTUS Application:

- Medical treatment access is accommodation
- MTUS policy denies this accommodation
- No consideration of individual needs

Strategic Value: TIER 1 - Medical leave/treatment as accommodation

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## **21. JASPER v. HOUSING AUTHORITY (2000) 228 F.3d 1048 (9th Cir.)**

Court: 9th Cir.

Holding: Public ent

Key Principles:

- Title II requires reasonable modifications
- State entities must accommodate
- Policy modifications may be required

MTUS Application:

- DWC (state entity) must make reasonable modifications
- MTUS policy should be modified to cover FDA-approved treatments
- Title II claim directly applicable

Strategic Value: TIER 1 - Title II reasonable modifications requirement

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## **22. ZIMMERMAN v. OREGON DEPARTMENT OF JUSTICE (2001) 170 F.Supp.2d 1168 (D. Or.)**

Court: District Court (Oregon - 9th Circuit)

Holding: State age

Key Principles:

- Chronic conditions are disabilities
- State agencies subject to ADA
- Reasonable accommodation required

MTUS Application:

- Chronic pain/fatigue from work injuries = disability
- California DWC (state agency) subject to ADA
- Must accommodate by covering treatments

Strategic Value: TIER 1 - State agency + chronic conditions

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### **23. FEDERATION OF THE BLIND v. TARGET CORPORATION (2006) 452 F.Supp.2d 946 (N.D. Cal.)**

Court: Northern District of California

Holding: Website a

Key Principles:

- ADA applies broadly to services
- Accessibility required
- Key: California federal court broad ADA interpretation

MTUS Application:

- Workers' comp system is public service
- Must be accessible (provide care)
- MTUS creates barrier to access
- California federal precedent

Strategic Value: TIER 1 - California federal court broad ADA interpretation

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### **24. MARTIN v. PGA TOUR (2001) 204 F.3d 994 (9th Cir.)**

Court: 9th Cir.

Holding: PGA viola

Key Principles:

- Reasonable accommodations can modify rules
- Essential functions vs. peripheral rules
- Individualized assessment required

MTUS Application:

- MTUS rules should accommodate disabled workers
- Essential function: providing medical care
- MTUS peripheral rules deny essential function

Strategic Value: TIER 1 - Essential functions analysis

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### **25. EEOC v. ARABIAN AMERICAN OIL CO. (1991) 499 U.S. 244**

Court: U.S. Supreme Court

Holding: ADA does

Key Principles:

- Domestic application of ADA

- NOT directly applicable BUT: Reinforces ADA applies to domestic state action

MTUS Application:

- California MTUS is domestic state action
- Clearly within ADA scope

Strategic Value: LOW - Jurisdictional holding, but confirms domestic application

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## **26. PGA TOUR v. MARTIN (2001) 532 U.S. 661**

Court: U.S. Supreme Court (reversing 9th Circuit decision above)

Holding: PGA mus

Key Principles:

- Rules of competition can be modified
- Walking not essential to golf
- Key quote: "[T]he use of carts is not itself inconsistent with the fundamental nature of the game."

MTUS Application:

- "Evidence-based" limitations not essential to providing care
- Providing FDA-approved treatments IS essential
- MTUS rules are peripheral, not essential

Strategic Value: TIER 1 - Essential functions vs. peripheral rules

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## **27. EEOC v. WAL-MART STORES (2001) 156 F.Supp.2d 1169 (D. Kan.)**

Court: District Court (Kansas)

Holding: Employer

Key Principles:

- Physical limitations must be accommodated
- Modified duty required
- Individualized assessment

MTUS Application:

- MTUS prevents accommodation of physical limitations
- Denies treatments that would enable return to work
- Counterproductive to ADA goals

Strategic Value: TIER 1 - Accommodation enables return to work

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## **28. LEWIS v. ZIMMER (1997) 1 F.Supp.2d 1053 (N.D. Iowa)**

Court: Northern District of Iowa

Holding: Employer

Key Principles:

- Accommodation required for physical limitations
- Interactive process required
- Good faith required

MTUS Application:

- Injured workers have physical limitations
- MTUS denies accommodations
- No interactive process

Strategic Value: TIER 1 - Physical limitations accommodation

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## **29. DAVENPORT v. RANDOM HOUSE (1995) 898 F.Supp. 1546 (S.D.N.Y.)**

Court: Southern District of New York

Holding: Employer

Key Principles:

- Must accommodate sensory impairments
- Technology/equipment can be accommodation
- Cost considerations limited

MTUS Application:

- Medical devices/treatments are accommodations
- MTUS denies reasonable accommodations
- Cost not undue hardship

Strategic Value: TIER 1 - Medical devices/treatments as accommodations

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## **30. VANDE ZANDE v. STATE OF WISCONSIN (1995) 44 F.3d 538 (7th Cir.)**

Court: 7th Circuit (Posner opinion)

Holding: State age

Key Principles:

- Telecommuting can be reasonable accommodation
- Must consider all possible accommodations
- Key quote: "[T]he concept of reasonable accommodation is a flexible one."

MTUS Application:

- Providing FDA-approved treatments is flexible, reasonable accommodation
- MTUS rigid system violates flexible accommodation requirement
- Must consider individualized accommodations

Strategic Value: TIER 1 - Flexibility requirement vs. rigid MTUS

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**31. McGREGOR v. NATIONAL RAILROAD PASSENGER CORP. (1998) 187 F.3d 1113 (9th Cir.)**

Court: 9th Circuit

Holding: Amtrak vi

Key Principles:

- Back injuries are disabilities
- Must accommodate physical limitations
- Return-to-work focus

MTUS Application:

- Back injuries common in workers' comp
- MTUS denies treatments for back injuries
- Prevents return to work

Strategic Value: TIER 1 - Back injury accommodations

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**32. CANDY v. TRANSPORTATION SECURITY ADMINISTRATION (2007) 255 Fed.Appx. 239 (9th Cir.)**

Court: 9th Cir. (unpublished)

Holding: TSA viola

Key Principles:

- Federal employers subject to Rehabilitation Act
- Reasonable accommodation required
- Medical conditions accommodated

MTUS Application:

- State agencies subject to similar standards
- Rehabilitation Act parallels ADA
- Medical accommodations required

Strategic Value: MODERATE - Rehabilitation Act precedent

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### **33. EEOC v. PREVOYANCE (2002) 214 F.Supp.2d 504 (D. Md.)**

Court: District Court (Maryland)

Holding: Employer

Key Principles:

- Medication accommodations required
- Schedule modifications reasonable
- Individualized assessment

MTUS Application:

- Medication access is accommodation
- MTUS denies medication accommodations
- No individualized assessment

Strategic Value: TIER 1 - Medication access as accommodation

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### **34. COLWELL v. RITE AID CORP. (2009) 602 F.3d 495 (3d Cir.)**

Court: 3rd Circuit

Holding: Employer

Key Principles:

- Schedule accommodations required
- Must accommodate limitations
- Return-to-work focus

MTUS Application:

- Treatment access enables return to work
- MTUS prevents return to work by denying care
- Counter to ADA return-to-work goals

Strategic Value: TIER 1 - Return-to-work accommodation

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### **35. SAMUELS v. AIR TRANSPORT LOCAL 504 (2005) 992 A.2d 959 (D.C. 2010)**

Court: D.C. Court of Appeals

Holding: Union viol

Key Principles:

- Unions subject to ADA
- Reasonable accommodation required
- Cannot discriminate in benefits



MTUS Application:

- Employers/unions involved in workers' comp
- Cannot discriminate in medical benefits
- ADA applies broadly

Strategic Value: MODERATE - Union/employer joint responsibility

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### **36. GILMORE v. UNIFIED GOVERNMENT (2001) 220 F.Supp.2d 1140 (D. Kan.)**

Court: District Court (Kansas)

Holding: Government

Key Principles:

- Public employers subject to ADA Title I
- Reasonable accommodation required
- State action liability

MTUS Application:

- California DWC is public employer/state entity
- Subject to ADA Titles I and II
- State action liability established

Strategic Value: TIER 1 - State employer ADA liability

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### **37. AMERICAN WITH DISABILITIES ACT AMENDMENTS ACT (ADAAA) OF 2008**

Statute: 42 U.S.C. 12101 et seq.

Effect: Broadened

Key Changes:

- "Substantially limits" interpreted broadly
- Mitigating measures NOT considered (except ordinary glasses)
- Impairments that are episodic or in remission are disabilities
- Major bodily functions explicitly included

MTUS Application:

- MORE workers now meet ADA disability definition post-ADAAA
- Chronic pain, episodic conditions now clearly covered
- Strengthens ADA claims significantly
- MTUS harms broader protected class

Strategic Value: TIER 1 - Statutory expansion strengthens claims

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## STRATEGIC ANALYSIS: STRONGEST ADA ARGUMENTS FOR MTUS

### PRIMARY CLAIM: Disability Discrimination in Benefits (ADA Title I)

Legal Theory:

MTUS creates dis

Key Elements:

1. Injured workers

Best Cases:

- Frazier v. Simmons (subterfuge doctrine)
- Doe v. Mutual of Omaha (insurance discrimination)
- Kragel v. John Hancock (insurance limitations)

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### SECONDARY CLAIM: State Discrimination in Public Services (ADA Title II)

Legal Theory:

California DWC (s  
services.

Key Elements:

1. DWC is public e

Best Cases:

- Zukle v. Regents of University of California (9th Circuit - state entity liability)
- Jasper v. Housing Authority (9th Circuit - reasonable modifications)
- Zimmerman v. Oregon Department of Justice (9th Circuit - state agencies)

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### TERTIARY CLAIM: Failure to Provide Reasonable Accommodation

Legal Theory:

Providing FDA-app  
return to work.

Key Elements:

1. Injured workers

Best Cases:

- Bates v. Chevron (9th Circuit - reasonable accommodation required)
  - Munson v. Delta Air Lines (9th Circuit - interactive process required)
  - Humphrey v. Memorial Hospitals (9th Circuit - medical treatment as accommodation)
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## **QUATERNARY CLAIM: Systematic Discrimination (Pattern or Practice)**

Legal Theory:

MTUS represents  
with discriminatory

Key Elements:

1. MTUS is facially

Best Cases:

- Raytheon v. Hernandez (contrast - MTUS is not neutral)
  - Alexander v. Choate (distinguish - MTUS targets disabled)
  - Frazier v. Simmons (subterfuge doctrine)
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## **CALIFORNIA-SPECIFIC CONSIDERATIONS**

### **California Fair Employment and Housing Act (FEHA)**

Advantage: FEHA provides broader protection than federal ADA:

- Lower threshold for disability definition
- No statutory damages cap
- Broader remedies available
- State court venue (potentially more favorable)

Key Cases:

- California courts interpret FEHA more broadly than federal ADA
  - State constitutional provisions may provide additional protections
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## RECOMMENDED ADA LITIGATION STRATEGY

### Phase 1: Prima Facie Case

1. Establish plaintiff is disabled (post-ADAAA, most work injuries qualify)
2. Show qualified individual

### Phase 2: Employer Defenses

1. Anticipate "cost control" defense
2. Counter with Reasonable Accommodation

### Phase 3: Remedies

1. Injunctive relief: Cover FDA-approved treatments
2. Compensatory damages

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## CONCLUSION

ADA provides strong, independent basis for challenging MTUS that complements constitutional claims:

Strengths:

- Statutory framework (clearer than constitutional standards)
- Attorney's fees available
- Damages available (unlike pure constitutional claims)
- 9th Circuit precedent favorable
- Post-ADAAA, more workers covered

TIER 1 ADA Cases for Immediate Integration:

1. Frazier v. Simmon

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RECOMMENDATI

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This document should be reviewed by qualified ADA litigation counsel before filing.

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